AGREEMENT BETWEEN
NATIONAL FIRE SPRINKLER ASSOCIATION, INC.
AND
SPRINKLER FITTERS AND APPRENTICES LOCAL UNION NO. 821
OF FLORIDA
THE UNITED ASSOCIATION OF JOURNEYMEN AND APPRENTICES
OF THE PLUMBING AND PIPE FITTING INDUSTRY
OF THE UNITED STATES AND CANADA

ARTICLE 1

This agreement made this 12th day of June 2021 and operative July 1, 2021, is by and between National Fire Sprinkler Association, Inc. and Sprinkler Fitters and Apprentices Local Union No. 821.

The National Fire Sprinkler Association, Inc. a body corporate under authority from its contractor members pursuant to its By-Laws, has negotiated and signed this Agreement for and on behalf of contractors that have given the National Fire Sprinkler Association, Inc. written authority to negotiate this Collective Bargaining Agreement, each of whom is the ‘employer’ party to this contract. A list of the names of those contractor members authorizing National Fire Sprinkler Association, Inc. to negotiate and execute this Agreement and on whose behalf it is negotiated and executed is attached hereto and made a part hereof.

ARTICLE 2

This agreement is entered into in good faith and the subscribers hereto declare their entire willingness to fulfill all requirements contained herein, their acts being done with the full knowledge, consent and authority of the parties. It is hoped and believed that this Agreement properly respected will tend to remove the cause for industrial strife and bring about a better understanding between employer and employee.

Each owner, partnership or corporation shall have and maintain all proper contractor and business licenses, including the State Fire Marshal’s Certificate of Competency, where applicable.

Each owner, partnership or corporation shall have and maintain the necessary workers’ compensation and other insurance as required by law and shall furnish to the Local Union a current certificate of said insurance.

There shall be no discrimination with regard to a protected class as defined by the Federal Government and Florida Law, by either the Union or the Employer, relative to employment or conditions of employment. Whenever used in this Agreement, the masculine pronoun is understood to refer to both genders.

All employees and employers, covered by the Collective Bargaining Agreement shall comply with all federal and state safety laws.

ARTICLE 3

RECOGNITION: The National Fire Sprinkler Association, Inc., for and on behalf of the contractors it represents that have given written authorization, and all other employing contractors becoming signatory hereto, recognize the Union as the sole and exclusive bargaining representative for all Journeymen Sprinkler Fitters and Apprentices in the employ of said employers, who are engaged in all work as set forth in Article 13 of this Agreement with respect to wages, hours and other conditions of employment pursuant to Section 9 (a) of the National Labor Relations Act.

The Union has submitted proof and the Employer is satisfied that the Union represents a majority of its employees in a unit appropriate for collective bargaining.

The Employer recognizes the Union pursuant to Section 9(a) of the National Labor Relations Act as the authorized representative of its employees in an appropriate bargaining unit for the purpose of collective bargaining rates of pay, wages, fringe benefits, hours and other terms and conditions of employment.

ARTICLE 4

TERRITORY: The territory embraced in this Agreement shall be the State of Florida. “Off-Shore” drilling operations within the waters of the territorial jurisdiction of Local Union 821 shall be included in this article. The conditions to be in effect on the rigs shall be agreed on by the parties to this agreement.

ARTICLE 5
Wages

Effective July 1, 2021, the rates of wage to be paid under this Agreement for Sprinkler Fitters and corresponding Total Packages shall be as follows:

Classification	Wage	H&W	RESA	Pension	IP	UA ITF	SIS	App. Fund	Total Package
Industrial	$32.98	$9.55	$0.65	$7.00	$0.30	$0.10	$2.75	$0.50	$53.83
Commercial	$30.63	$9.55	$0.65	$7.00	$0.30	$0.10	$2.75	$0.50	$51.48
Low Commercial	$29.38	$9.55	$0.65	$7.00	$0.30	$0.10	$2.75	$0.50	$50.23

Effective July 1, 2022, there shall be a Total Package increase of Ninety Cents ($0.90).

Effective July 1, 2023, there shall be a Total Package increase of One Dollar ($1.00).

No less than sixty (60) days prior to July 1, 2024, NFSA and Local Union 821 shall meet to discuss an Economic Reopener. The discussion shall be limited to Articles under this Agreement with monetary value only.

*NASI Welfare and Pension amounts to align per Article 20 Uniformity of Fringes; any increases to be paid by the contractors.

Note: If fringes go up beyond the anticipated amounts set forth above during the contract the increase will be deducted from the package so as to be no cost increase to the employer.

The rate of wages for Journeymen as outlined above shall remain in effect on jobs bid under these provisions should these jobs go beyond the expiration date of this agreement, including in cases of economic reopeners or extensions, not to exceed the conclusion of such jobs or end of the calendar year, whichever comes first.

An Industrial Rate is established for new construction projects at sugar mills, power generation plants, trash incineration facilities, automobile production facilities, aerospace production facilities, and all projects (new construction retrofit, and ITM) at the Kennedy Space Center and Cape Canaveral Space Force Station (Formerly known as Cape Canaveral Air Force Station) and Patrick Space Force Station (Formerly known as Patrick Air Force Base). New construction shall be understood as the site preparation for, and construction of, entirely new structures and/or significant additions to existing structures on greenfield or previously occupied sites.

A low commercial rate has been established that applies to all work on High Rises and Commercial occupancies up to 12 stories in height and in warehouses up to 800,000 square feet.

At the discretion of the Business Manager or Business Agent all work performed under the jurisdiction of Local 821, may be worked on a Project Agreement basis, including the altering of wages conditions, travel and per diem, or any other conditions in this contract as may be necessary to secure work.

Foreman

The Foreman is the representative of the employer, and employer shall have the right to select the Foreman. There shall be a Foreman on each job. Preference shall be given to Local 821 employees when selecting a Foreman.

The rate of pay for Foreman on projects with four men or less shall be One Dollar and Seventy-Five Cents ($1.75) per hour above the Journeyman rate.

The rate of pay for Foreman on projects with more than four men shall be Two Dollars and Twenty-Five Cents ($2.25) per hour above the Journeyman rate.

The rate of pay for General Foreman shall be Four Dollars and Twenty-Five Cents ($4.25) per hour above the Journeyman's rate.

Apprentice Wages

Apprentice wages shall be based on the following schedule:

First Year	50% of the Commercial Rate
Second Year	55% of the Commercial Rate
Third Year	60% of the Commercial Rate
Fourth Year	75% of the Low Commercial Rate, as a minimum
Fifth Year	85% of the Low Commercial rate, as a minimum

Apprentices working on a job covered under the industrial rate shall receive the percentage of the Journeyman's Industrial rate. For Apprentices working on prevailing wage jobs (Local, State or Federal) and the prevailing rate (Journeyman Rate) is higher than in the contract, the Apprentice shall receive the percentage (%) of the higher rate as listed above.

The employer shall not make any pension contributions on behalf of the Apprentice during the first three years of Apprentice Training.

Supplemental Pension (SIS) fund contributions: Apprentices indentured after June 30, 2011 but prior to July 1, 2017 will receive SIS contributions based on the percentages below:

1st Year Apprentices will receive 50% of the standard SIS fund contribution
2nd Year Apprentices will receive 55% of the standard SIS fund contribution
3rd Year Apprentices will receive 65% of the standard SIS fund contribution
4th Year Apprentices will receive 75% of the standard SIS fund contribution
5th Year Apprentices will receive 85 % of the standard SIS fund contribution

All apprentices indentured after June 30, 2017 will receive 50% of the standard SIS Fund contribution.

Production Worker

The following terms represent an understanding reached by NFSA and Sprinkler Fitters U.A. Local 821. The terms of the understanding regarding the Production Worker category are as follows:

1. The Production Worker shall pay monthly dues the same as a Journeyman Sprinkler Fitter and work assessments equal to two (2%) percent of the gross wages.
2. The Production Worker shall not be allowed Journeyman Sprinkler Fitter status.
3. The Production Worker shall not be allowed to work on site without a Journeyman Sprinkler Fitter on the same job site.
4. The ratio of Journeyman to Production Worker shall be one (1) Production Worker to one (1) Journeyman Sprinkler Fitter.
5. The Production Worker shall be allowed to do the same work as a Journeyman Sprinkler Fitter, except work as a Foreman.
6. The rate for a Production Worker shall be equal to Two Dollars ($2.00) more than the First Year Apprentice wage rate. Effective July 1, 2021, the rate for a Production Worker shall be Seventeen Dollars and Thirty-Two Cents ($17.32).

Effective July 1, 2021, the Total Package rate for Production Worker shall be as follows:

Wage/Hour	H&W	Pension	Total Package
$17.32	$4.25	$0.65	$22.22

Trainee

The following terms represent an understanding reached by the parties to this Agreement. The terms of this understanding regarding Trainees are as follows:

1. The ratio of Journeymen to Trainees will be one (1) Trainee to two (2) Journeymen. This ratio will be based on a corporate employment basis, not per jobsite.

2. A Trainee, who has worked twelve (12) months or over 2,000 hours, will either be indentured into the Apprenticeship Program, the Production Worker Program at second (2^{nd}) year, or terminated.

3. The rate for a Trainee shall be equal to Fifty Cents ($0.50) less than the First Year Apprentice wage rate. Effective July 1, 2021, the rate for a Trainee shall be Fourteen Dollars and Eighty-Two Cents ($14.82).

4. A Trainee shall receive no other fringe contributions. Overtime, travel pay, and per diem shall be as per this Agreement.

5. Within thirty days (30) of hiring a new Trainee, the hiring contractor shall submit to the J.A.T.C. an application form and a High School Diploma or G.E.D. equivalent for the new Trainee. Failure to submit this documentation will be cause for termination of the Trainee.

Payment of Wages

1. Employers shall have the right to pay by check or direct deposit. Payroll checks must bear the authorized signature of and be drawn from the account of the employer by whom the men are employed.

2. Wages shall be paid to the employees at the normal quitting time of the job on the company's regular established pay day, including all wages due up to and including the previous week.

3. The employee shall receive a check stub with each check showing the employer's name and address, payroll period covered, regular and overtime hours worked and all deductions and also the amount of contributions made on behalf of the employees to the various fringe benefit funds.

4. A bad check shall be considered non-payment of wages.

5. An employee who doesn't receive his paycheck at the time set forth in this Article shall after be entitled to eight (8) hours pay.

6. Parking: If no parking is available on the job site, the employer will provide parking or pay the cost of parking provided the employee submits receipts, or the employer will supply transportation to and from the job site.

7. Should an employee leave the job before regular quitting time he shall advise the foreman before leaving.

8. If the employee leaves the job early, he shall be paid for hours worked only.

9. When an employee is terminated, he shall remain on the payroll until he is paid in full. If an employee is fired, he shall be paid no later than his regularly scheduled pay day.

10. It is also agreed that any workman shall be paid a maximum of two (2) hours for filling out an application and drug testing.

11. It is further understood that the employee then has the responsibility to notice the employer concerning the late paycheck and subsequent to notification, the employee shall be entitled to eight (8) hours pay for each twenty-four (24) hour period, until he receives his paycheck.

12. An employee who notifies the employer in writing that he wishes his paycheck to be mailed to his home address shall not be entitled to any penalty payments for late checks due to the post office services, provided the check was mailed in sufficient time to arrive within the time limits of this Article.

13. The employer may pay employees by direct deposit. If so, the deposit must be in the employee's account by quitting time on the employer's regular payday, except that the employer shall not be responsible for late pay resulting from bank problems.

14. If an employee shows up on the job drunk or under the influence of drugs, he shall receive no show up time and if the employer discharges this employee for the same reason, the employee would be paid at the next regular scheduled pay day for work performed.

15. If an employee is absent three (3) consecutive workdays without notice it may be presumed that he has quit the job. This decision is at the employer's option.

ARTICLE 6

<u>TRAVEL TIME AND EXPENSE</u>: The State of Florida shall be divided into nine areas; each area shall be further divided into three zones.

The areas shall be known as:

West Palm Beach	Orlando	Tallahassee
Jacksonville	Ft. Myers	Tampa
Miami	Pensacola	Gainesville

The Zones in each area shall be divided as follows:

a) Using the County Court House and a radius of fifty-five (55) miles shall be known as Zone I in each area.

b) Zone II in each area shall be a radius from the County Court House over fifty-five (55) miles up to ninety (90) miles.

c) Zone III in each area shall be a radius from the County Court House beyond ninety (90) miles.

d) Zone III will never overlap into a zone of another area.

e) Zone I will be a free zone for which no expense shall be paid.

f) Zone II shall receive a carfare allowance of Twenty Dollars ($20.00) per day for those employees using their own vehicle.

g) When working on jobs in Zone III, employees shall receive per diem at the following rates:

    1) One Hundred Dollars ($100.00) per day, effective July 1, 2021
    2) One Hundred Five Dollars ($105.00) per day, effective July 1, 2022
    3) One Hundred Ten Dollars ($110.00) per day, effective July 1, 2023

Effective July 1, 2021, if an employee travels in excess of 300 miles from his Zone and works six (6) days per week, he will receive seven (7) days per diem for a complete work week, as long as the employee works all hours that are scheduled for the work week. If the employee does not work all available hours, they will only receive per diem for full days worked.

h) When an employee, during the course of the day, is required by the employer to go from one job to another, and drives his own vehicle, he shall be paid the IRS mileage rate (as established January 1 of each year) for each mile driven from job to job with a minimum payment of One Dollar ($1.00). Distance shall be determined by using “Google maps” shortest route.

i) When an employee is required to travel into Zone III, from the County Court House, of an area to which the employee has been assigned by the Joint Committee, he shall be paid per mile in accordance with paragraph h above over the most direct route (using Google maps online) in going to the job for the first time and returning from the job for the last time, together with travel time at the rate of one hour for each sixty (60) miles.

For the purpose of contributions to all funds set forth in this agreement, travel hours shall be considered hours worked when travel occurs during the standard workday. When travel hours occur outside the standard workday, no health and welfare, pension, IP Fund, UA ITF, SIS, or Apprentice Fund contributions shall be made for these hours only.

After the employee has arrived at the job and starts work, he shall be paid per diem in accordance with paragraph “g” above for each day worked and per diem for each day that work is not made available because of weather conditions or not made available by the employer until the job is completed. The employees shall be paid no other travel or subsistence in addition to the above. Any strike at the jobsite shall be excluded from this section or if any employee does not report for work.

j) In traveling to and from the contract, each employee shall be paid per diem in accordance with paragraph g above for each three hundred (300) miles traveled.

k) No transportation expenses will be paid when the employer furnishes the employee's transportation. Travel time, however, shall be paid in accordance with the provisions of i, whether the employee is riding in his own vehicle or a vehicle furnished by the employer. Discretion of riding in the company vehicle is to be determined by the employee.

l) If an employee leaves his work before its completion, or without the consent of the employer, travel shall be at the employee's own time and expense.

m) The Joint Apprentice Committee, serving as the Zoning Committee, at its regular meetings shall maintain a current list of all employees assigned to one of the nine (9) areas.

n) When an employee is sent by an employer to an area other than the area to which the employee is assigned, the employee shall be paid the maximum per diem in accordance with paragraph g above.

o) When an employee is furnished a company vehicle for work in Zone III and he commutes daily to and from the job, he shall not receive the per diem payment.

ARTICLE 7
HOURS OF WORK, OVERTIME, AND SHIFTS

A. HOURS OF WORK: All employees shall commence work at the regular starting time and shall be on the job until quitting time, lay-off or discharge, with one-half (1/2) hour for lunch.

The standard workday shall be any eight (8) consecutive hours of work, excluding one half (1/2) hour for lunch, between the hours of 6:00 am. and 6:00 p.m. The standard work week shall be Monday thru Friday. Four (4) days at ten (10) hours per day may be worked at straight time, Monday thru Thursday, with prior approval of both the union and the employer. Friday will be worked at time and one-half in such case. The employer will notify the Union in writing that the company is returning to the standard workday.

Should an employee leave the job before regular quitting time he shall advise the foreman before leaving.

If a holiday occurs during the normal work week, then the contractor may work 4 days at10 hours per day at straight time to make up for not working the holiday.

B. SHIFTS: Shift work may be performed at the option of the employer. However, when shift work is performed, it must continue for a period of not less than five (5) consecutive workdays. The day shift shall work a regular eight (8) hour shift as outlined above. Eight (8) hours of work constitutes a shift. The hourly rate for men on the second and third shifts shall be Fifteen per cent (15%) above the basic hourly rate. There shall be a minimum of two (2) men on the day shift. The Contractor shall advise in writing the Union seventy-two (72) hours in advance of the start of the shift operation.

C. <u>OVERTIME</u>: Work performed in excess of the eight-hour workday, Monday through Friday and all hours of work on Saturday shall be paid at time and one half the straight time hourly wage rate. All work performed on Sundays, Holidays, and emergency and unscheduled call out work between the hours of 11:00 p.m. and 4:00 a.m. shall be at double the hourly wage rate. The following days shall be considered Holidays: New Year's Day, Memorial Day, July 4th, Labor Day, Thanksgiving Day, Friday following Thanksgiving Day, and Christmas Day.

When one of the above Holidays falls on Sunday, the following Monday shall be considered the Holiday. If a Holiday falls on Saturday, the preceding Friday is to be a Holiday and all work performed on said day shall be at double time rate. Overtime hours worked will be reported to the union once a month on forms presently being used.

D. It is also agreed that any workman after being hired or reporting for work at the regular time for which no work is provided, shall receive two (2) hours pay at the prevailing rate of wage unless he has been notified before leaving home not to report. It is also agreed that any workman after starting work in the morning and being laid off shall receive four (4) hours pay at the prevailing rate of wage. It is further agreed that any workman, after working in the morning and having started work after the lunch period, or having worked for over four straight hours thru the normal lunch period, shall receive four (4) hours pay at the prevailing rate of wage for the afternoon. An exception shall be made when weather or strike conditions make it impossible to put such an employee to work, or any such stoppage of work is occasioned thereby or any workman leaves his work of his own accord.

E. In the interest of maintaining and preserving employment in the area in which work is being performed, when an employer lays off on a job Local 821 employees shall be the last laid off. In the event of lay-off, the employee shall be given two (2) hours notice of lay-off.

F. <u>OFF HOURS</u>: On all buildings that are occupied and the hours are not under the control of the contractor, and the hours do not fall into the category of the regular workday or the shift clause cannot apply, the contractor may bid the "off hours" at straight time plus 15%. This paragraph shall not apply to new construction or emergency work.

It is understood that prior to the initiation of the "off hours" provision, the owner of such building (or owner's representative) shall provide a written confirmation as to the owner's necessity that work in the above paragraph be done during the "off hours" period. The Union will be given five (5) days to verify the conditions.

ARTICLE 8
WORK STANDARDS AND PRODUCTION

MEMBER AND LOCAL UNION RESPONSIBILITIES:

To ensure the **UA Standard for Excellence** platform meets and maintains its goals, the Local

Union Business Manager, in partnership with his implementation team, including shop stewards and the local membership, shall ensure all members:

- Meet their responsibilities to the employer and their fellow workers by arriving on the job ready to work, every day on time (Absenteeism and tardiness will not be tolerated.)
- Adhere to the contractual starting and quitting times, including lunch and break periods (Personal cell phones will not be used during the workday with the exception of lunch and break periods.)
- Meet their responsibility as highly skilled craftsworkers by providing the required tools as stipulated under the local Collective Bargaining Agreement while respecting those tools and equipment supplied by the employer.
- Use and promote the local union and international training and certification systems to the membership so they may continue on the road of lifelong learning, thus ensuring UA craftworkers are the most highly trained and sought after workers.
- Meet their responsibility to be fit for duty, ensuring a zero tolerance policy for substance abuse is strictly met.
- Be productive and keep inactive time to a minimum.
- Meet their contractual responsibility to eliminate disruptions on the job and safely work towards the on-time completion of the project in an auspicious manner.
- Respect the customers' property (Waste and property destruction, such as graffiti, will not be tolerated.)
- Respect the UA, the customer, client and contractor by dressing in a manner appropriate for our highly skilled and professional craft (Offensive words and symbols on clothing and buttons are not acceptable.)
- Respect and obey employer and customer rules and policies.
- Follow safe, reasonable and legitimate management directives.

EMPLOYER AND MANAGEMENT RESPONSIBILITIES:

MCAA/MSCA, PFI, MCPWB, PCA, UAC and NFSA and their signatory contractors have the responsibility to manage their jobs effectively, and as such have the following responsibilities under the **UA Standard for Excellence**.

- Replace and return to the referral hall ineffective superintendents, general foremen, foremen, journeyworkers and apprentices.
- Provide worker recognition for a job well done.
- Ensure that all necessary tools and equipment are readily available to employees.
- Minimize workers' downtime by ensuring blueprints, specifications, job layout instructions and material are readily available in a timely manner.
- Provide proper storage for contractor and employee tools.
- Provide the necessary leadership and problem-solving skills to jobsite supervision.
- Ensure jobsite leadership takes the necessary ownership of mistakes created by management decisions.
- Encourage employees, but if necessary, be fair and consistent with discipline.

- Create and maintain a safe work environment by providing site specific training, proper equipment and following occupational health and safety guidelines.
- Promote and support continued education and training for employees while encouraging career building skills.
- Employ an adequate number of properly trained employees to efficiently perform the work in a safe manner, while limiting the number of employees to the work at hand, thereby providing the customer with a key performance indicator of the value of the **UA Standard for Excellence**
- Treat all employees in a respectful and dignified manner, acknowledging their contributions to a successful project.
- Cooperate and communicate with the job steward.

PROBLEM RESOLUTION THROUGH THE UA STANDARD FOR EXCELLENCE POLICY:

Under the **UA Standard for Excellence** it is understood, that members through the local union, and management through the signatory contractors, have duties and are accountable in achieving successful resolutions.

MEMBER AND LOCAL UNION RESPONSIBILITIES:

- The local union and the steward will work with members to correct and solve problems related to job performance.
- Job stewards shall be provided with steward training and receive specialized training with regard to the **UA Standard for Excellence**.
- Regular meetings will be held where the job steward along with UA supervision will communicate with the management team regarding job progress, work schedules, and other issues affecting work processes.
- The job steward shall communicate with the members about issues affecting work progress.
- The business manager or his delegate will conduct regularly scheduled meetings to discuss and resolve issues affecting compliance of the **UA Standard for Excellence** policy.
- The steward and management will attempt to correct such problems with individual members in the workplace.
- Individual members not complying with membership responsibility shall be brought before the Local Union Executive Board, which will address such members’ failure to meet their obligation to the local and the UA, up to and including filing charges. The local union’s role is to use all available means to correct the compliance problem.

EMPLOYER AND MANAGEMENT RESPONSIBILITIES:

- Regular meetings will be held where the management team and UA supervision will communicate with the job steward regarding job progress, work schedules, and other issues affecting the work process.

- Management will address concerns brought forth by the steward or UA supervision in a professional and timely manner.
- A course of action shall be established to allow the job steward and/or UA supervision to communicate with higher levels of management in the event there is a breakdown with the responsible manager.
- In the event that the employee is unwilling or unable to make the necessary changes, management must make the decision whether the employee is detrimental to the **UA Standard for Excellence** platform and make a decision regarding his/her further employment.

ADDITIONAL JOINTLY SUPPORTED METHODS OF PROBLEM RESOLUTION:

- In the event an issue is irresolvable at this level, the local or the contractor may call for a contractually established labor management meeting to resolve the issues.
- Weekly job progress meetings should be conducted with job stewards, UA supervision and management.
- The local or the contractor may involve the customer when their input is prudent in finding a solution.
- Foremen, general foremen, superintendents and other management should be educated and certified as leaders in the **UA Standard for Excellence** policy.

<u>DRUG TESTING</u>: It is mutually agreed between NFSA and Local Union 821, those employees, members of Local 821 shall take any drug test required by the contractor or the contractor client with the provision that if the employee tests positive, the employee shall bear the cost of the test up to One Hundred Dollars ($100.00). Should the employee request a retest, it is understood that the retest will be from the same sample. Should the retest be positive, the total cost of the second test will be borne by the employee. If any employee tests positive, the employee will be terminated immediately, and their paycheck mailed to them on the next pay period.

<u>PRODUCTION OF LABOR</u>: It is agreed that a fair day's work shall be performed at all times, and that the highest possible standard of work shall be maintained. There shall be no limitation of the amount of work to be performed.

No Journeyman or Apprentice working for an Employer shall work overtime for another Employer during any twenty-four (24) hour pay period. All journeymen and apprentices working on jobs where overtime work is involved must be given preference for this overtime work.

There shall be no restrictions as to the use of machinery and tools.

There shall be no restriction as to the use of materials.

There shall be no restriction as to the manner in which work shall be done.

Employees shall perform work in a neat and efficient manner.

Employers are at liberty to discharge whomever they desire for just cause.

If an employee is injured on the job to the extent of requiring a doctor's care and the injury prevents the employee from continuing work, the employee shall be paid a full day's work for the day of the injury.

ARTICLE 9
MATERIAL AND FABRICATION

MATERIAL: The Union shall accept all materials and equipment as delivered by or for the employer and the unloading, handling and installation of such materials and equipment shall be performed by employees covered by the Collective Bargaining Agreement, except as modified by the following:

If there are no bargaining unit personnel on the job, the delivery agent will be allowed to unload materials on a one drop basis in a secure location. If there are bargaining unit personnel on the site, one delivery agent may assist in unloading materials. Metal Trades personnel shall be paid the metal trades rates and the welfare and pension contributions of the metal trades agreement if applicable.

All brazing and soldering of copper pipe shall be fabricated and assembled by Journeymen or Apprentices on the jobsite.

All pre-fabricated threaded pipe shall have only one screwed fitting on one threaded pipe permanently tight in a fabrication shop for shipment to any job within the territorial jurisdiction of the local union and the employees covered under this agreement shall install this material without objection or interruption.

The foregoing shall, however, not apply to spool pieces, feed main nipples and risers and pipe and fittings that must be hot dipped.

The cutting of holes may be performed in the shop by shop fabricators. The installation of the mechanical tees shall be performed on the jobsite.

Bulk main and cross main welded fabrication will be limited to no more than two (2) welded fittings and per piece of pipe. The number of welded outlets per piece of pipe is not limited.

ARTICLE 10
TOOLS

TOOLS: Employees shall furnish all hand tools up to and including 10" pipe wrenches. The Employer shall furnish all other tools. The parties agree that, as skilled craftsmen, the employees shall take proper care of all tools in order to ensure that tools are not lost, stolen, or misplaced.

Employers shall be required to furnish all safety equipment required by the Federal and State Safety Laws. The company shall furnish the first hard hat. If said hat is lost or stolen, the employee shall pay for the replacement at company cost.

No employee shall rent, lease, or loan his truck, pickup, or vehicle or his machinery or equipment to any employer at any time or under any conditions.

Employees will be allowed to carry in their own vehicles tools and materials not to exceed the amount allowed to be carried by commercial bus. (It is not to exceed 2' x 2 x 5`or 100 lbs.)

ARTICLE 11
MANPOWER

MANPOWER: The employer shall determine the number of personnel for each job.

Each contractor shall prepare and send to the union a monthly report showing all employees covered by this agreement and their hours for the month. The report shall be by Fax or email. This report is due by the 15th of the month. If the report is not sent to the union, the union reserves the right to remove the personnel for non-compliance 15 days after written notice of non-compliance is sent to the employer. The employer is also responsible to notify the union within 24 hours of hiring and terminating of employees covered by this agreement. This shall be done on a form provided by the union and can be transmitted by fax or email.

ARTICLE 12
APPRENTICESHIP

APPRENTICESHIP: The selection, employment and terms of employment under this Agreement shall be on a basis of qualifications only without regard to discrimination as to race, creed, color, sex, or national origin.

The parties mutually agree that an Apprenticeship System has been established and the working conditions of Apprenticeship Standards of this Collective Bargaining Agreement must be observed. It is understood that in matters dealing with the enforcement of the ratio and Apprenticeship Standards which are an addendum to this Agreement the Joint Apprentice Committee has full responsibility and authority.

The ratio of apprentices to journeymen for each employer shall be determined on an industry basis of one apprentice to two journeymen. It is understood that should an employer hire apprentices in excess of a 1:2 ratio on a company basis and should unemployment occur within a company, the employer, first, shall lay off the newly hired apprentices in excess of company ratio of 1:2. After the employer reaches a 1:2 ratio, then unemployment shall be shared by journeymen and apprentices alike.

Apprentices shall be assigned to employers only thru the Joint Apprenticeship Committee or its delegated representatives. Each contractor shall report once a month to the Joint Apprentice Committee the number of Journeymen and Apprentices working in their employ. Reporting forms to be supplied by the Joint Apprenticeship Committee.

NATIONAL AUTOMATIC SPRINKLER INDUSTRY APPRENTICE AND TRAINING FUND:

In order to carry out the functions of the Apprentice Program, each contractor who is a party to this Agreement shall pay to the "National Automatic Sprinkler Training Industry Apprentice and Training Fund" the sum of Fifty Cents ($0.50) per hour for all hours worked by all employees whose wages are covered by this Collective Bargaining Agreement, effective July 1, 2021.

The employer shall not be responsible for any expense or cost beyond the hourly contributions as set forth herein.

It shall be the duty of the Trustees of this Fund to collect contributions from the employers who are a party to this Agreement and to disburse from this Fund monies, less the expense of collection and administration for expenses incurred by the Joint Apprentice Committee in the territory embraced by this Agreement in carrying out the functions of the Apprentice Program.

In consideration of benefits to be derived the Union and Employers, party to this Agreement, do hereby join in and subscribe to the Declaration of Trust dated as of May 23, 1966 of the "National Automatic Sprinkler Industry Apprentice and Training Fund" and agree to be bound by Amendments thereto and the employers to the Agreement agree to make contributions as set forth in the Agreement to the Trustees, and further, the parties to this Agreement authorize the parties of the "National Automatic Sprinkler Industry Apprentice and Training Fund" to name Trustees and successor Trustees, hereby ratifies and accepts such Trustees and the terms and conditions of said Trust as fully and completely as if made by the undersigned.

United Association International Training Fund: In order to carry out the functions of the international training Fund, each contractor who is party to this Agreement shall forward to the NASI Fund Office Ten Cents ($.10) per hour for all hours worked by all Journeymen and Apprentices whose wages are covered by this Collective Bargaining Agreement. NASI will forward these contributions to the United Association International Training Fund.

The Union shall withdraw all men from any contractor who fails to make the above payments.

ARTICLE 13
JURISDICTION

JURISDICTION OF WORK: The work of the sprinkler fitter and/or apprentice shall consist of the installation of all fire protection and fire control systems including the unloading, handling by hand, power equipment and installation of all piping and tubing appurtenances and equipment pertaining thereto, including both overhead and underground water mains, fire hydrants and hydrant mains, hose houses and hydrants, standpipes and hose connections with sprinkler and alarm systems, also all tanks and pumps connected thereto, but excluding steam fire protection systems. Also, included shall be C02 and Cardox systems and detection systems, mulsifyre, fog and fog foam, also dry chemical systems.

ARTICLE 14
SUB-CONTRACTING

SUB-CONTRACTING: Any contractor who sub-contracts work covered by this agreement that is to be performed on a construction jobsite, shall sub-contract said work to a contractor signatory to this Agreement.

ARTICLE 15
GRIEVANCE AND ARBITRATION

GRIEVANCE PROCEDURE AND ARBITRATION: During the term of this Agreement there shall be no strikes, lockouts, slow-downs or work stoppages.

All disputes and grievances by employees and employers relative to the interpretation or application of this Agreement shall be processed in the following manner:

1. The Union or its Representative shall attempt to resolve the dispute with the contractor involved.

2. If the grievance or dispute is not resolved in step 1, the grievance or dispute shall be reduced to writing with a copy sent to the contractor involved.

3. If the dispute or grievance is still unresolved, it shall be referred to a Labor Management committee which shall consist of equal representatives of the employers selected by the National Fire Sprinkler Association, Inc. and equal representatives of the Union, selected by the Union. A majority of representatives from both the National Fire Sprinkler Association, Inc. and the union shall constitute a quorum. In case of the absence or refusal of any such representative to act, another shall be appointed in his place.

To this Committee shall be referred all questions that may arise regarding the construction to be placed on any clause or clauses of this Agreement and any other alleged violation thereof which cannot be settled, the enforcement of this Agreement, and any other dispute which may arise hereunder. When differences arise which necessitate action by this Committee, the aggrieved persons shall meet expeditiously to resolve all differences and disputes submitted. All decisions of the Labor Management Committee shall be final and binding upon the parties. The questions which may be referred to arbitration shall be limited to grievances arising out of the interpretation and enforcement of the Agreement or the violation thereof, or any other dispute arising hereunder; however, neither the Committee nor the arbitrator may by decision provide new or different provisions in this contract or change any of the wage rates, as set forth herein.

In the event the members of the Labor Management Committee deadlock on any dispute or difference submitted to them, then the aggrieved parties shall have the right to request the Federal Mediation and Conciliation Service to submit a list of seven (7) names. After receipt of the names of seven (7) arbitrators, the Union and the Employer shall meet and alternate in striking three (3) names from the list, with the first strike decided by a toss of a coin. The remaining name after the Union and the Employer have struck three (3) names from the list shall be the Impartial Arbitrator. The decision of the Impartial Arbitrator shall be final and binding on the parties to Arbitration. Fees and costs of any arbitrator appointed by the FMCS shall be borne by the losing party.

4. The procedures outlined above concerning the mechanics of processing a grievance for the union and/or its representatives shall also apply for an employer and/or the National Fire Sprinkler Association, Inc.

Any grievance filed by the employee and/or the Local Union, or by the employer and/or National Fire Sprinkler Association, Inc. shall be filed within ten (10) working days of the occurrence of the alleged grievance.

Notwithstanding the no strike agreement, the Union will not be required to process any grievance relative to payment of wages, delinquency of contributions to any of the funds, or failure to participate in the grievance procedure or to abide by the decision of the Labor Management Committee as outlined in item number three of this article and may withdraw its men from the employer.

<u>LATE FILING CLAUSE</u>: It is agreed that in the event the Employer is delinquent at the end of the period in the payment of his contribution to the Health and Welfare, the Pension Fund, Apprenticeship Fund, SIS Fund, Market Recovery Fund and Dues Check-Off created under this Agreement, in accordance with the rules and regulations within the specific articles of this Agreement, the employees and/or their representatives shall have the right to take action that may be necessary until such delinquent payments are made; provided however, that such action is subsequent to the Employer receiving notice in writing from the Welfare and Pension Fund Administrator or from the authorized representatives administering the Education and dues check off procedure that said contractor is delinquent and it is further agreed that in the event such action, is taken, the Employer shall be responsible for any loss resulting there from. In the event the employees are withdrawn from work because of the employer being delinquent in paying fringe benefits or wages, the employer shall be liable for the actual time lost by the employees until such time the employer becomes current in payment of fringe benefits and wages.

The employers and employees party to this Agreement shall recognize primary picket lines which have been recognized by the United Association or the Local Building Trades.

ARTICLE 16
WELFARE

<u>WELFARE</u>: It is mutually agreed that a Welfare Fund on a National Automatic Sprinkler Industry (NASI) basis had been established for those employees whose wages are covered by this Collective Bargaining Agreement.

Effective July 1, 2021, each contractor party to this Agreement shall contribute Ten Dollars and Twenty Cents ($10.20) per hour for all hours worked by all employees covered by this Collective Bargaining Agreement. This amount shall include Nine Dollars and Fifty-Five Cents ($9.55) per hour for Level 1 NASI Health and Welfare Benefits and Sixty-Five Cents ($0.65) per hour for the Retired Employee Subsidy Account (RESA).

The contractor shall pay the cost of annual increases required to align with the provisions of Article 20 (Uniformity of Fringes). The contractor shall not be responsible for any cost or expense other than as stipulated in the above paragraph.

ARTICLE 17
PENSION

PENSION: It is mutually agreed that a Pension Fund on a National Automatic Sprinkler Industry (NASI) basis has been established for those employees whose wages are covered by this Collective Bargaining Agreement.

Effective July 1, 2021, each contractor party to this Agreement shall contribute Seven Dollars ($7.00) per hour for all hours worked by all employees covered by this Collective Bargaining Agreement. (See exception as stated in Article 5 regarding newly Indentured Apprentices).

The contractor shall pay the cost of annual increases required to align with the provisions of Article 20 (Uniformity of Fringes). The contractor shall not be responsible for any cost or expense other than as stipulated in the above paragraph.

ARTICLE 18
SUPPLEMENTAL PENSION

SUPPLEMENTAL PENSION: It is mutually agreed that a Sprinkler Industry Supplemental (SIS) Defined Pension Fund is hereby established for those employees whose wages are covered by this collective bargaining agreement.

For the purpose of the support, maintenance, and administration of the Fund, each contractor party to this Agreement shall pay to the Fund Two Dollars and Seventy-Five Cents ($2.75) per hour for all hours worked by all employees covered by this Collective Bargaining Agreement effective on and after July 1, 2021, except as provided in Article 5 (Apprentice Wages).

The employer shall not be responsible for any expense or cost beyond this hourly contribution as set forth herein. Any additional increases would come from the employee base wage rates.

This fund is created under an Agreement and Declaration of Trust by and between National Fire Sprinkler Association, Inc. and Sprinkler Fitters and Apprentices Local Unions No. 709, Los Angeles, California, No. 483, San Francisco, California, and No. 699, Seattle, Washington. There shall be an equal number of Association and union trustees, appointed by the respective parties to this agreement. It shall be the duty of the trustees to administer the Agreement and Declaration of trust in accordance with Federal and State Laws and to take all necessary steps to carry out the legal operation of the fund.

The employers bound by this agreement do hereby join in and subscribe to the Agreement and Declaration of Trust of the West Coast Automatic Sprinkler Industry Supplemental Defined Contribution Pension Fund and agree to be bound by any amendments thereto.

ARTICLE 19
ASSENT OF FUNDS

ASSENT OF WELFARE AND PENSION FUNDS: In consideration of benefits to be derived and other good and valuable considerations, Sprinkler Fitters Local Union No. 821, Florida although not a party to the Local 669 Agreement, does hereby join in and does subscribe to the Declaration of Trust made between the National Fire Sprinkler Association, Inc. and Local Union 669 and agrees to be bound by any amendments thereto, and the employers to this Agreement with Sprinkler Fitters Local Union No. 821. Florida, agree to make contributions in the amounts as set forth in this Agreement to the Trustees as provided for by the Trust Agreements between the National Fire Sprinkler Association, Inc. and Local Union 669, and further, the Parties hereto authorize said parties of the Local 669 Agreement to make Trustees and Successor Trustees to administer said Welfare Fund and Pension Fund and hereby ratifies and accepts such Trustees under the terms and conditions of said Trusts as fully and completely as if made by the undersigned. It is further understood and agreed that all employers shall furnish the Union within fifteen (15) days after the close of each month's payroll period, the pink copy of the report sent to the Health and Welfare and Pension Funds Office in Washington, D.C. It is further understood and agreed that those reports shall be complete in accordance with the instructions for the calculations of contributions.

ARTICLE 20
UNIFORMITY OF FRINGES

UNIFORMITY OF FRINGE CONTRIBUTIONS: Whereas, this Agreement provides for contributions to the National Automatic Sprinkler Industry Welfare and Pension Funds by contractors party to this Agreement and whereas, the Trustees to these Funds require uniform contributions to these Funds, therefore, the Welfare and Pension Contributions as set forth in this Agreement shall be adjusted January 1 of each year so that the contributions required in this Agreement shall be uniform and identical with the hourly contributions as required by the 669 Agreement.

Sprinkler Fitters Local Union 821 reserves the right to withdraw its participation in the National Automatic Sprinkler Industry Health and Welfare Fund. Should Local 821 elect to withdraw its participation, contributions to the Health and Welfare Fund shall be terminated and shall be allocated to wages.

ARTICLE 21
INDUSTRY FUND

Effective July 1, 2021, each contractor party to this Agreement shall contribute Thirty Cents ($0.30) per hour to the National Automatic Sprinkler Industry Promotion Fund. It is understood that Five Cents ($0.05) shall be designated for local use, and Twenty-Five Cents ($.25) is to be used for National Programs and Contract Administration.

Employers agree to become party to the Agreement and Declaration of Trust establishing the National Fire Sprinkler Industry Promotion Fund. It is understood and agreed that the Fund and program of benefits at all times through the life of this Agreement shall be such to qualify for approval by the Internal Revenue Service of the United States Treasury Department and other appropriate government agencies if necessary to permit all employers an income tax deduction for contributions paid.

ARTICLE 22
SURETY BOND

SURETY BOND: All contractor parties who are subscribers to this Agreement or who desire to become a subscriber to this Agreement shall furnish to the Union with a copy to the NFSA a cash or surety bond with a U.S. Treasury Listed Bonding Company in proportion to the average number of hours worked per month during the preceding year:

Number of Reportable Hours	Amount of Bond
1-350	$25,000
351-900	$50,000
901-2,000	$100,000
Over 2,000	$250,000

Said bond shall expressly guarantee, in the following order of priority:

1. Wages, including dues, as required by this Agreement;
2. Welfare Fund contributions, as required by this Agreement;
3. Pension Fund contributions, as required by this Agreement;
4. Education Fund contributions, as required by this Agreement;
5. S.I.S. Fund contributions, as required by this Agreement;
6. Industry Promotion Fund contributions, as required by this Agreement; and
7. Liquidated Damages, interest and attorney's fees, as established by the Trustees of the Fund.

Each such bond shall provide, in the event an Employer rejects this Agreement in connection with a bankruptcy proceeding, the bond shall also guarantee payments to the Welfare, Pension, S.I.S. and Industry Promotion Fund (in that order of priority), which would have been required by this Agreement, but for the Court's Order approving rejection of the Agreement.

Any contractor who becomes signatory to this Agreement must have a bond on file with the Local with a copy to NFSA within fifteen (15) calendar days of the signing of this Agreement.

Contractors who default on benefits contributions twice within a twelve (12) month period, or upon a second non-compliance bonding notice, shall incur twice the required bonding amounts thereafter. Such contractors shall not be eligible for Market Recovery Funds as administered by the Local Union 821 for a period of twelve (12) months from the second default or second non-compliance bonding notice, whichever occurs sooner, and thereafter until the above issues have been fully resolved.

Should the contractor fail to provide and maintain the bond as required, the Union must remove the employees covered by this Agreement provided, however, that the contractor first be given fifteen (15) calendar days written notice by the Local Union headquarters of his failure to comply.

In the event such action is taken, the Employer shall be responsible for any loss resulting there from.

In lieu of the bonding requirement of this Article and only with the Union's prior approval, a contractor may obtain an irrevocable and unconditional Letter of Credit in the amount specified above. The necessary and acceptable form for this purpose shall be provided by the Union.

ARTICLE 23
DUES AND DEDUCTIONS

DUES CHECK OFF: The employer agrees to deduct Union Membership Dues lawfully and uniformly levied by the Union in accordance with the Constitution and By-Laws of the Union from the pay of each employee who executes or has executed an "Authorization for check-off of work assessment" form. Such deductions shall be computed and deducted weekly and remitted to Local Union 821 monthly, not later than the 15th day of each month following the month in which the wages were paid.

Any change in the rate or amount of membership dues levied by the Union shall be put into effect and the deductions made during the calendar month following the calendar month in which the employer received from the Union written notice of the change. The Union agrees to save and hold the employer and the Association harmless from any action, claim, loss damage or the like, including all attorney's fees arising from or in any way connected with any deductions made pursuant to this paragraph.

The Union shall provide the employers with new check off authorization forms.

MARKET RECOVERY FUND: It is agreed between the Florida Sprinkler Fitters Local Union 821 and the National Fire Sprinkler Association, Inc., on behalf of its contractor members who have assigned their bargaining rights, that Union will continue their Market Recovery Fund payroll deduction at a rate of Eighty Cents ($0.80) per hour.

UA ORGANIZING FUND: It is agreed between the Florida Sprinkler Fitters Local Union 821 and the National Fire Sprinkler Association, Inc., on behalf of its contractor members who have assigned their bargaining rights, that the employer shall deduct from the pay of each employee who executes or has executed an "Authorization for check-off of work assessment" form and remit to Local 821 Ten Cents ($0.10) per hour for the UA Organizing Fund.

LOCAL 821 POLITICAL ACTION CHECK-OFF: The employer shall deduct from the pay of each employee covered by this Agreement, and remit to Local 821 voluntary contributions to the Local 821 (CCE) and the United Association Political Education Committee for each employee who voluntarily executes the authorization check-off form provided for that purpose by Local 821.

The amount and timing of such check-off deductions and the transmittal of such voluntary contributions shall be as specified in those forms, and in compliance with all applicable federal and state laws. Contributions of $50 or less must be remitted to Local 821 within thirty (30) days of such deduction and contributions over $50 must be remitted within ten (10) days of such deduction.

It is further agreed that the administrative procedures necessary to implement the Local 821 Political Action Check-off will be jointly determined by the parties hereto within thirty (30) days of the execution of this Agreement.

The administrative procedure will include reimbursement of the employer's reasonable administrative costs of complying with this provision at the highest legally permissible rate.

The Union agrees to save and hold the Employer and the National Fire Sprinkler Association Inc. harmless from any action, claim, loss, damage, or the like, including all attorneys' fees arising from and in any way connected with any deduction made pursuant to this Article.

ARTICLE 24

ADDITIONAL SHOP COUNTER - CONTRACT PROPOSALS: If any employer covered by this Agreement, whether a sole proprietorship, a joint venture, a partnership or a corporation, or any partner, or any person holding a controlling or majority interest in any corporate employer controls or operates any other business within the trade and territorial jurisdiction of the Union, such other business entity shall either have a signed agreement with the Union, or this Agreement shall be interpreted as including such a business entity as an employer hereunder, and such other business entity shall be bound to the terms of this Agreement from the date that the employer, as defined herein, begins to control or operate the other business entity.

For the purpose of this provision, an employer, partner or person, as defined herein, will be deemed to "control or operate" a business entity if he controls in whole or in part the labor relations of the business entity or places the control, in whole or in part of the labor relations of the other business entity, under the authority of another person or entity other than the employer as defined herein.

ARTICLE 25
PROVISIONS FOR RENEWAL OF AGREEMENT

Sixty (60) days prior to June 30, 2026, written notice may be given by either party requesting a conference to prepare for such alterations or amendments to this Agreement as may be necessary; failing to give such written notice, this Agreement remains in force from year to year until written notice of Sixty (60) days prior to June 30th is served.

Written notice shall be sent by registered or certified letter to the National Fire Sprinkler association at 514 Progress Drive, Suite A, Linthicum Heights, MD 21090.

ARTICLE 26
DURATION

DURATION OF AGREEMENT: This Agreement shall run from 12:01 am July 1, 2021 to 12:00 Midnight June 30, 2026.

ARTICLE 27

SAVINGS CLAUSE: In accordance with the intent and agreement of the parties, the provisions of this collective bargaining agreement shall be interpreted and construed in a manner which is consistent with all applicable Federal and State laws. In the event, however, that any article or provisions to this Agreement shall be declared invalid, inoperative or unenforceable by any competent authority of the executive, legislative, or judicial branch of the Federal or any State government, the Employer and the Union shall suspend the operation of such article or provision during the period of its invalidity and shall substitute, by mutual consent in its place and stead, an article or provision which will meet the objections to its validity and which will be in accord with the intent and purposes of the article or provision in question.

If any article or provision of this Agreement shall be held invalid, inoperative or unenforceable by operation of law or by any of the above-mentioned tribunals of competent jurisdiction, the remainder of this Agreement or the application of such article or provision to persons or circumstances other than those as to which it has been held invalid, inoperative and unenforceable shall not be affected thereby.

Dated this 12th day of June, 2021

FOR THE PARTY OF THE FIRST PART:

SIGN Fred Barall

FRED BARALL
NATIONAL FIRE SPRINKLER ASSOCIATION, INC.

FOR THE PARTY OF THE SECOND PART:

SIGN E. Skarosi, Jr.

ED SKAROSI
SPRINKLER FITTERS AND APPRENTICES LOCAL UNION NO. 821 – FLORIDA

Residential Addendum

Effective July 1, 2021, residential work is made a part of this Agreement. All work in connection with the installation and maintenance of fire protection systems for residential occupancies, as defined herein, shall continue to be covered by Article 13 of this Agreement. All articles, terms, and conditions of this Agreement shall be applicable to "residential fire protection work," as defined below, unless specifically amended herein.

"Residential fire protection work" is defined to mean any work covered by Article 13 of this agreement, including nonresidential portions of primarily residential buildings on:

1. One or two family dwellings;
2. All multiple family dwelling units which are permitted to have a single exterior up to and including four stories; and
3. Townhouses with units stacked vertically up to and including four stories; and
4. Group residential care facilities and protective care homes (sheltered housing), excluding nursing homes, ambulatory care facilities and assisted living facilities, and
5. Motels and hotels up to 150 units and four stories.

The Residential Tradesman and Residential Helper shall work on only residential jobs as defined above and shall not be assigned to do any other work described in Article 13 of this Agreement.

All residential fire protection work shall be performed by Building Trades Journeymen or Apprentices represented by Local 821 or by Residential Tradesmen or Helpers represented by Local 821. The crew mix on residential fire protection projects shall consist of one (1) Local 821 Building Trades Journeyman or one (1) Local 821 Residential Tradesman to three (3) Local 821 Residential Helpers or three (3) Local 821 Building Trades Apprentices.

There shall be at least one (1) Local 821 Building Trades Journeyman or one (1) Local 821 Residential Tradesman on every job. The wage rate for the Building Trades Journeyman shall be the current wage listed for nonresidential Building Trades journeyman classification, as provided in Article 5. It is agreed that Affirmative Action in hiring practices will be utilized.

The rate of wage to be paid a Residential Tradesman shall be equal to the Fourth Year Apprentice wage rate. Effective July 1, 2021, the rate of wage to be paid a Residential Tradesman shall be Twenty-Two Dollars and Four Cents ($22.04).

The rate of wage paid a Year Two Residential Helper shall be equal to Thirty-Five Cents ($0.35) more than the Production Worker wage rate. Effective July 1, 2021, the rate for a Year Two Residential Helper shall be Seventeen Dollars and Sixty-Seven Cents ($17.67).

The rate of wage to be paid a Year One Residential Helper shall be equal to the rate for a Trainee. Effective July 1, 2021, the rate of wage paid a Year One Residential Helper shall be Fourteen Dollars and Eighty-Two Cents ($14.82).

Effective July 1, 2021, the Total Packages for Residential Tradesmen and Helpers shall be as follows:

Classification	Wage	Metal Trades H&W	SIS	Total Package
Tradesman	$22.04	$4.25	$0.30	$26.59
Year 2 Helper	$17.67	$4.25	$0.30	$22.22
Year 1 Helper	$14.82	$4.25	$0.30	$19.37

In no event shall an individual working under this Agreement be paid less than the Federal or applicable state minimum wage rate in addition to the fringe benefits established herein.

All residential overtime worked shall be at the rate of time and a half, after forty hours worked.

Effective July 1, 2021, the employer shall contribute to the NASI Metal Trades Health and Welfare Fund Four Dollars and Twenty-Five Cents ($4.25) per hour for each hour worked by the Residential Tradesman or Year Two Residential Helper and thereafter.

Benefits will be paid on Building Trades Journeymen, if utilized, per Articles 16, 17, and 18 of this Collective Bargaining Agreement.

Under this Agreement, it is agreed that a Sprinkler Industry Supplemental (SIS) Defined Contribution Fund contribution shall be established for Residential Tradesman and Helpers pursuant to the following terms:

For Residential Tradesman and Year Two Residential Helpers and thereafter, S.I.S. Fund contributions shall be required for all hours worked at the rate of Thirty Cents ($0.30) per hour in addition to their wages.